

CHAPTER 45.

An Act to amend the law with respect to the sale
of fertilisers and feeding stuffs.

[15th December 1926.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present
Parliament assembled, and by the authority of the
same, as follows :—

Civil Liabilities.

Obligation
to furnish
statutory
statements.

1.—(1) It shall be the duty of every person who
sells for use as a fertiliser of the soil or as food for cattle
or poultry any article included in the first column of the
First or Second Schedule to this Act, whatever may be
the name under which the article is sold, to give the
purchaser on or before delivery, or as soon as reasonably
practicable thereafter, a statement in writing (herein-
after referred to as a statutory statement) in such form
(if any) as may be prescribed, containing the following
particulars :—

- (a) the name under which the article is sold ;
- (b) such particulars (if any) of the nature, substance,
or quality of the article as are in relation to
the article mentioned in the second column of
such schedule ;
- (c) where the article, if a feeding stuff, contains
any ingredient included in the Third Schedule
to this Act, the name of such ingredient :

Provided that the obligation so imposed shall not
apply—

- (i) to sales of two or more articles which are mixed
at the request of the purchaser before delivery
to him :
- (ii) to sales of small quantities (that is to say, sales
in quantities of fifty-six pounds or less) if the
article sold is taken in the presence of the
purchaser from a parcel bearing a conspicuous
label on which are marked in the prescribed
manner the particulars required by this section
to be contained in the statutory statement.

(2) Failure to give a statutory statement in accordance with the provisions of this section shall not invalidate a contract for sale.

2.—(1) A statutory statement given by the seller of any such article as aforesaid shall, notwithstanding any contract or notice to the contrary, have effect as a written warranty by the seller that the particulars contained in the statutory statement are correct. Warranties.

(2) On the sale for use as food for cattle or poultry of an article included in the first column of the First or Second Schedule to this Act there shall be implied, notwithstanding any contract or notice to the contrary, a warranty by the seller that the article is suitable to be used as such, and does not, except as otherwise expressly stated in the statutory statement, contain any ingredient included in the Third Schedule to this Act.

(3) Where an article sold for use as a fertiliser of the soil or as food for cattle or poultry is in a statutory statement or other document described by a name specified in the first column of the Fourth Schedule to this Act, the sale of the article under that name shall have effect as a written warranty that the article accords with the definition thereof contained in the second column of that schedule.

(4) Any statement as to the amount of chemical or other ingredients or as to the fineness of grinding of an article sold for use as a fertiliser of the soil, or as to the amount of the nutritive or other ingredients of an article sold for use as food for cattle or poultry, which is made after the commencement of this Act in any written document (other than a statutory statement) descriptive of the article shall have effect as a warranty by the seller that the facts stated are correct.

(5) No action on any such warranty as is mentioned in this section shall lie for any mis-statement therein as to the particulars of the nature, substance or quality of the article or as to the amount of any ingredient where the mis-statement does not exceed the limits of variation (if any) prescribed under this Act in relation

to such particulars or amounts, but where the misstatement exceeds such limits, the rights of the purchaser under the warranty shall not be affected by such limits.

Right of purchaser to have article sampled and analysed.

3.—(1) The purchaser of any article included in the first column of the First or Second Schedule to this Act, or of any fertiliser or feeding stuff not included therein in respect of which a warranty, express or implied, has been given by the seller, shall, on payment of such fee (if any) as may be fixed under this Act, be entitled to have a sample of the article taken by an official sampler in the prescribed manner and analysed by the agricultural analyst, and to receive from the analyst a certificate of the result of his analysis :

Provided that a purchaser of an article who requires a sample to be taken under this section shall, if so requested, furnish to the official sampler who takes the sample the statutory statement or warranty relating to the article, or a copy thereof.

(2) A sample taken under this Act by an official sampler at the request of a purchaser shall be taken in the prescribed manner, and shall not be taken after the expiration of fourteen days from the delivery to the purchaser of the article sampled, or the receipt by the purchaser of the statutory statement or warranty, whichever date may be the later.

Criminal Liabilities.

Marking of articles prepared for consignment.

4.—(1) Every parcel of an article included in the first column of the First Schedule to this Act when prepared for sale or consignment for use as a fertiliser of the soil or as food for cattle or poultry shall, if exposed for sale, or, if not exposed for sale, before being removed from the premises where it is so prepared, be marked in the prescribed manner with a mark or marks stating or indicating the particulars required by this Act to be contained in the statutory statement.

(2) Any person dealing in any such parcels may for the purposes of this section keep in such form (if any) as may be prescribed a register of marks specifying the

particulars which the several marks entered in the register are used as indicating, and the marking of any parcel with any mark entered in the register shall, for the purposes of this section, be treated as indicating that the particulars of the article are those entered in the register in relation to the mark :

Provided that—

- (a) on the sale of any parcel so marked the mark shall be added to the statutory statement; and
- (b) where the statutory statement received by the seller on the sale to him of the parcel contains any such mark, and the parcel has not been on his premises, that mark shall be added by him to the statutory statement required to be given by him to a purchaser.

(3) If any parcel required under this section to be marked is not so marked, or if from the analysis of a sample of the parcel taken by an inspector in the prescribed manner on the premises on which the parcel is exposed for sale or on any premises on which the parcel after having been so marked may happen to be before being delivered to a purchaser or carrying agent, it appears that the particulars marked or indicated by a mark are false to the prejudice of the purchaser, or do not include any particulars which are required by this Act to be contained in the statutory statement, the person selling or having in his possession or disposition for the purpose of sale or consigning the parcel or exposing it for sale shall be guilty of an offence against this Act.

5.—(1) In the case of an article delivered or consigned direct from a ship or quay to a purchaser, the provisions of this section shall apply in lieu of the provisions of the last preceding section. Consignments *ex* ship or quay.

(2) The seller of an article included in the first column of the First Schedule to this Act and so delivered or consigned shall as soon as practicable enter in a register kept by him in such form (if any) as may be prescribed the following particulars :—

- (a) the date of delivery or consignment to the purchaser, the place of delivery to the purchaser

or other destination, and the quantity delivered or consigned;

- (b) any shipping or other mark on the article;
- (c) the particulars which by this Act are required to be contained in the statutory statement.

(3) The seller of any such article shall be guilty of an offence against this Act—

- (a) if he fails to enter in his register any particular required by this section to be entered therein other than a particular required to be contained in the statutory statement; or
- (b) if any particular entered therein, other than a particular required to be contained in the statutory statement, is false in any material particular; or
- (c) if from the analysis of a sample of the article taken by an inspector in the prescribed manner on the quay or at the time of its delivery to the purchaser or during its transit to him it appears that any particular entered in the register, being a particular required to be contained in the statutory statement, is false to the prejudice of the purchaser, or that any particular required to be contained in the statutory statement is not entered in the register.

Sales in
small
quantities.

6. Where an article is sold for use as a fertiliser of the soil or as food for cattle or poultry in small quantities from a parcel which purports to be labelled in manner hereinbefore provided, and from an analysis of a sample thereof taken by an inspector in the prescribed manner on the premises on which the parcel is kept it appears that the particulars stated on the label are false to the prejudice of the purchaser, or do not include any particulars which are required by this Act to be contained in a statutory statement, the owner or seller shall be guilty of an offence against this Act.

Deleterious
ingredients
in feeding
stuffs.

7.—(1) Any person who sells or offers or exposes for sale for use as food for cattle or poultry any article which contains any ingredient deleterious to cattle or poultry, or has in his possession, packed and prepared,

for sale for such use any such article, shall be guilty of an offence against this Act unless he proves—

- (a) that he did not know and could not with reasonable care have known that the article contained a deleterious ingredient; and
- (b) where he obtained the article from some other person, that on demand by or on behalf of the prosecutor he gave all the information in his power with respect to the person from whom he obtained it, and as to the statutory statement given to him, and as to any mark applied to the article when he obtained it :

Provided that proceedings for an offence under this section shall not be instituted unless the article has been sampled by an inspector in the prescribed manner on the premises on which it was sold or exposed or offered for sale or on which it was when prepared for sale or consignment, and the sample has been analysed in accordance with the provisions of this Act.

(2) Any substance mentioned in the Fifth Schedule shall, if present in a feeding stuff or, where a maximum quantity with regard to the substance is indicated in the Fifth Schedule, if present in excess of that quantity, as the case may be, be deemed to be a deleterious ingredient unless the contrary is proved.

8.—(1) If a person fails to give a statutory statement in such form (if any) as may be prescribed in any case where he is required by this Act so to do, he shall on summary conviction be liable, in the case of a first offence, to a fine not exceeding five pounds and, in the case of a second or subsequent offence, to a fine not exceeding ten pounds.

Penalties
for failure
to give and
mis-state-
ments in
statutory
statements.

(2) If on the sale of an article included in the first column of the First Schedule to this Act a person gives a statutory statement in which the particulars stated therein differ:—

- (a) from the particulars marked or indicated by a mark placed on a parcel of the article in accordance with this Act; or
- (b) in the case of an article delivered or consigned direct from a ship or quay to a purchaser, from the particulars entered in accordance with this Act in the seller's register; or

- (c) in the case of an article which has not been on the premises of the seller, from the particulars stated in the statutory statement given to the seller in respect of the article;

he shall be guilty of an offence against this Act unless he proves that he took all reasonable steps to avoid committing the offence and that he acted without intent to defraud.

(3) If a person fails to add to a statutory statement any mark which by virtue of this Act is required to be added thereto, he shall on summary conviction be liable, in the case of a first offence, to a fine not exceeding five pounds and, in the case of a second or subsequent offence, to a fine not exceeding ten pounds.

Inspection of registers and statutory statements.

9.—(1) It shall be the duty of any person by whom a register under this Act is kept, or to whom a statutory statement relating to an article which has been sold by him but which has never been on his premises has been sent, to preserve the register or statement for such period (not exceeding four months) as may be prescribed, and on demand by an inspector at any time within that period to produce it for his inspection, and if the person keeping the register, or to whom such a statutory statement was sent, fails so to preserve it, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(2) Any person having in his possession or under his control any register kept under this Act or any statutory statement made under this Act shall on demand by an inspector produce it for his inspection and if he fails to do so shall be liable on summary conviction to a fine not exceeding twenty pounds.

(3) An inspector may at all reasonable times enter any premises where he has reasonable cause to believe that any such register or statutory statement is for the time being kept, and may take copies thereof.

Relief from liability under the Merchandise Marks Acts in certain cases.

10. Where in pursuance of the foregoing provisions of this Act a description has been applied to any article included in the first column of the First Schedule to this Act, and such description is a trade description within the meaning of the Merchandise Marks Act,

1887, no proceedings shall be taken under that Act 50 & 51 Vict. on the ground that the description so applied is a false c. 28. description.

Administrative Provisions, Sampling and Analysis.

11.—(1) It shall be the duty of the council of every county or county borough to enforce within their county or county borough the provisions of this Act, and for that purpose to appoint an official agricultural analyst (in this Act referred to as the agricultural analyst) and such inspectors and official samplers as may be necessary :

Enforce-
ment of
Act by
councils of
counties
and county
boroughs.

Provided that every such inspector shall be a whole-time officer of the council or in the case of a joint appointment of one or more of the councils concurring in the appointment.

(2) Any such council may also appoint a deputy agricultural analyst, who shall in the case of the illness, incapacity, or absence of the agricultural analyst, or pending the appointment of the agricultural analyst, have all the powers and duties of the agricultural analyst; and where the deputy acts, this Act shall apply as if he were the agricultural analyst.

(3) The appointment by a council of the agricultural analyst, or deputy agricultural analyst, inspectors, and official samplers, shall be subject to the approval of the Minister.

(4) A person while holding the office of official sampler shall not engage in farming or any business connected with the manufacture, sale or importation of articles used as fertilisers of the soil or as food for cattle or poultry.

(5) The council of a county or county borough may concur with one or more other such councils in making any appointment which they are required or authorised to make under this section and as to the apportionment amongst the several councils of the expenses of any such joint appointment, but this power shall be in addition to and not in derogation of the power conferred on councils by the Local Government Act, 1888, to appoint joint committees for the purposes of this Act.

51 & 52 Vict.
c. 41.

Powers of
entry and
sampling.

12.—(1) An inspector appointed by a council under this Act may at all reasonable times enter any premises in which he has reasonable cause to believe that there is any article included in the first column of the First Schedule to this Act which has been prepared for sale or consignment, or any article included in the first column of the First or Second Schedule to this Act which is stored for use and not for sale or manufacture, and may take samples in the prescribed manner of any article on such premises which he has reasonable cause to believe to be such an article as aforesaid :

Provided that an inspector shall not exercise such power as aforesaid in respect of any premises situate outside the county or county borough for which he acts without the consent of the council of the county or county borough in which the said premises are situate or of some officer of that council to whom powers of giving such consent may have been delegated by that council.

(2) An inspector appointed by a council under this Act may for the purposes of this Act take a sample otherwise than in the prescribed manner of any article which has been sold for use as a fertiliser of the soil or as food for cattle or poultry, or which he has reasonable cause to believe to be intended for sale as such; but the name of the seller or purchaser or owner of the article of which a sample is so taken shall not be communicated to any person.

(3) An inspector appointed by the Minister may, if specially authorised in that behalf, exercise in any county or county borough the powers conferred by this section on an inspector appointed by the council thereof.

If, in the opinion of the Minister, the council of a county or county borough have insufficiently exercised their powers under this Act, either generally or in any particular case, the inspector appointed by the Minister may submit to the agricultural analyst for the county or county borough the samples so taken by him within that county or county borough; and the amount of any expenses certified by the Minister to have been incurred by an inspector appointed by him in the exercise of such powers as aforesaid shall, on demand, be repaid to the Minister by the council in default, and shall be recoverable from the council either as a debt due to the Crown or summarily as a civil debt.

(4) Where a sample of a parcel packed ready for retail sale which is of fourteen pounds weight or less and is exposed for sale by retail is taken under this section, the retailer may require the inspector to purchase the parcel on behalf of the local authority or of the Minister, as the case may be.

(5) In the exercise at any railway station or upon any railway premises of the powers conferred upon him by this Act an inspector shall conform to such reasonable requirements of the railway company owning or using such station or premises as are necessary to prevent the working of the traffic thereat being obstructed or interfered with.

13.—(1) Where a sample has been taken by an inspector or official sampler in the prescribed manner he shall divide it into three parts and cause each part to be marked, sealed and fastened up and he shall send two of the parts to the agricultural analyst together with a signed statement that the sample was taken in the prescribed manner, and the third part he shall deliver or send to the owner or seller as may be prescribed.

Provisions
as to
analysis of
samples.

(2) Where a sample submitted to the agricultural analyst has been so divided into parts, the agricultural analyst shall analyse one of the parts of the sample sent to him and shall retain the other for such period as may be prescribed.

(3) If the person by or on whose behalf the sample of an article is taken and analysed, or the owner or seller of the article, objects to the certificate of the agricultural analyst, the person objecting thereto shall, on payment of such fee as may be fixed by the Treasury be entitled to have submitted to the Government Chemist the part of the sample retained by the agricultural analyst and to have that part analysed by him and to receive from him a certificate of the result of his analysis.

(4) Where a sample or part of a sample is under this section sent for analysis to the agricultural analyst or the Government Chemist, there shall also be sent to him any statutory statement or warranty relating to the article sampled or a copy thereof, or a copy of the particulars marked on or indicated by a mark applied to the article.

(5) A certificate of analysis shall be signed by the agricultural analyst or the Government Chemist as the case may be; but the analysis may be made by any person acting under the direction of the agricultural analyst or the Government Chemist.

(6) Where a sample taken in the prescribed manner has been analysed by the agricultural analyst, he shall furnish to the person who submitted the sample for analysis and, where that person is not the purchaser, also to the purchaser and in every case to the owner or seller of the article his certificate of analysis :

Provided that, if the agricultural analyst does not know the name and address of the owner or seller, he shall send his certificate intended for the owner or seller to the person who submitted the sample, who shall forward it to the owner or seller.

(7) Where the sample has not been taken in the prescribed manner, the agricultural analyst shall send the certificate to the person who submitted the sample to him.

Tampering
with
samples.

14. If any person fraudulently—

(a) tampers with any article so as to procure that any sample of it taken or submitted for analysis under this Act does not correctly represent the article; or

(b) tampers or interferes with any sample taken or submitted for analysis under this Act;

he shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding six months.

Obstruction
of inspec-
tors.

15. If the owner or person entrusted for the time being with the charge and custody of any article refuses to allow an inspector to take a sample of the article on any premises on which he is authorised under this Act to take a sample, or if any person otherwise wilfully delays or obstructs any inspector in the execution of his duties under this Act, he shall be liable on summary conviction to a fine not exceeding twenty pounds :

Provided that an inspector seeking to exercise his powers under this Act shall, if so required, produce evidence of his appointment or authority.

16. If any inspector discloses any information obtained by him in or in connection with the exercise of his powers under this Act, except to persons acting in the execution of this Act and so far as such information may be necessary for the execution thereof, he shall be liable on summary conviction to a fine not exceeding fifty pounds.

Prohibition
against
disclosures.

17.—(1) The council of any county or county borough may contribute towards the expenses incurred by any agricultural body or association in causing samples to be taken by an official sampler in the prescribed manner for analysis by the agricultural analyst.

Financial
provisions
relating to
the councils
of counties
and county
boroughs.

(2) The council of any county or county borough may fix the fees to be payable in respect of the making of any analysis by the agricultural analyst and the taking of samples at the request of purchasers, and the council may fix different fees for different articles and for different quantities of the same article or for different analyses of the same article.

(3) The expenses of a council incurred in the execution of this Act (including any expenditure on the purchase by the council of articles for the purpose of enforcing the provisions of this Act) shall be defrayed in the case of a county council as part of their expenses for general county purposes, and in the case of a county borough council, out of the borough fund or borough rate.

18. The council of each county or county borough shall, as soon as practicable after the first day of January, the first day of April, the first day of July, and the first day of October in each year, make a return to the Minister of the results of the analysis of the samples submitted to the agricultural analyst for the county or the county borough during the preceding three months in such form as may be prescribed, and the agricultural analyst shall furnish to the council such information as may be necessary for the purpose.

Returns of
results of
analysis.

Legal Proceedings.

19. Any person guilty of an offence against this Act for which no special penalty is provided by this Act shall on summary conviction be liable in the case of a first

Penalties
for offences.

offence to a fine not exceeding twenty pounds and in the case of a second or subsequent offence to a fine not exceeding fifty pounds.

Restrictions
on taking
proceedings.

- 20.—(1) Proceedings for any offence against this Act to which the last foregoing section applies shall not be commenced without the consent of the Minister; and where the proceedings are in respect of causing or permitting any name, mark or particulars (except particulars which are not required to be contained in a statutory statement) to be false, or in respect of failure to include in the particulars marked or indicated by a mark or entered in a register or written on a label, any
- particulars which are required by this Act to be contained in the statutory statement, or in respect of the presence in a feeding stuff of any deleterious ingredient, the consent of the Minister shall not be given until the part of the sample retained by the agricultural analyst has been analysed and a certificate of analysis given by the Government Chemist.

(2) Where proceedings under this Act are taken against a person in respect of causing or permitting any name, mark, or particulars to be false, or for making a false entry in his register or for failure to state the presence in a feeding stuff of an ingredient included in the Third Schedule to this Act, he shall not be liable to conviction if he proves—

- (a) that having taken all reasonable precautions
 - against committing an offence against this Act he had not at the time of committing the alleged offence reason to suspect the correctness of the mark or entry, or the presence of such ingredient as aforesaid, as the case may be; and
- (b) where he obtained the article from some other person, that on demand by or on behalf of the prosecutor he gave all the information in his power with respect to the person from whom he obtained it and as to the statutory statement given to him, and as to any mark applied to the article when he obtained it.

(3) A prosecution in respect of causing or permitting any name, mark or particulars to be false or in respect of the presence of any ingredient included in the Third Schedule to this Act or of any deleterious ingredient,

shall not be instituted under this Act after the expiration of three months from the date on which a sample of the article was taken in the prescribed manner.

(4) In any such prosecution as aforesaid the summons shall state the particulars of the offence alleged and also the name of the prosecutor, and shall not be made returnable in less time than fourteen days from the date on which it is served, and there shall also be served therewith a copy of any certificate of the agricultural analyst obtained on behalf of the prosecutor.

21.—(1) Proceedings for an offence under this Act may, if the prosecutor so desires, be taken in the place where the person charged resides or carries on business. General provisions as to legal proceedings.

(2) In any proceedings for an offence under this Act it shall be no defence to allege that a sample having been taken for analysis only there was no prejudice to the purchaser.

(3) A prosecution for an offence under this Act may, subject to the provisions of this Act as to the consent of the Minister, be instituted by the person aggrieved or by the council of a county or county borough or with the consent of such council by an inspector appointed by such council, and in any case where a sample has been taken by an inspector appointed by the Minister, may be instituted by the Minister.

22.—(1) Where a sample, which has been taken in the prescribed manner by an inspector or official sampler, and has been divided into parts and marked, sealed and fastened up as hereinbefore mentioned, has been analysed, the agricultural analyst's certificate shall at the hearing of any civil or criminal proceedings with respect to the article sampled be sufficient evidence of the facts therein stated, unless the defendant or person charged requires that the person who made the analysis be called as a witness, or that the sample be further analysed by the Government Chemist. Evidence of certificate of analysis.

(2) In any legal proceedings the production of a certificate by the Government Chemist shall be sufficient evidence of the facts stated therein unless either party to the proceedings requires that the person who made the analysis be called as a witness.

General.

Regulations.

23.—(1) The Minister and the Board of Agriculture for Scotland jointly may, after consultation with the advisory committee to be constituted under this section, make regulations for prescribing anything which under this Act is required or authorised to be prescribed, and generally for carrying this Act into operation; and in particular such regulations may provide—

- (a) for varying any of the schedules to this Act;
- (b) for prescribing the manner in which articles required to be marked under this Act are to be marked and the nature of such marks;
- (c) for prescribing the limits of variation for the purposes of this Act;
- (d) for prescribing the manner in which samples are to be taken and dealt with in cases where under this Act they are taken in the prescribed manner;
- (e) as to the method in which analyses for determining the percentages of particular substances are to be made;
- (f) as to the qualifications to be possessed by agricultural analysts and deputy agricultural analysts and as to the form of certificates of analysis given by them;

and where any schedule is varied by regulations so made, this Act shall have effect as if the schedule as so varied were substituted for the schedule contained in this Act.

(2) For the purpose of assisting and advising them with respect to the making of regulations under this Act, the Minister and Board shall, after consultation with such associations as appear to them to represent the interests concerned, jointly appoint an advisory committee.

(3) All regulations made under this section shall be laid before Parliament as soon as may be after they are made, and if either House of Parliament, within the next subsequent twenty-one days on which that House has sat next after the regulations are laid

before them, presents an address to His Majesty praying that the regulations or any part of them may be annulled, they shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of new regulations.

24. This Act shall not apply to the sale of an article used as a fertiliser of the soil or as a food for cattle or poultry where the sale is in exercise of a statutory power to enforce a right or to satisfy a claim or lien, or where the sale is made by a sheriff, bailiff, or other officer to satisfy a writ of execution, or warrant or decree of any court, or a distress for rent or warrant of distress. Exemption for certain sales.

25. Where for the purposes of this Act the expressions "percentage of soluble phosphates" and "percentage of insoluble phosphates," are used in statements of equivalents, they shall be taken to mean respectively the percentage of tribasic phosphate of lime which has been and that which has not been rendered soluble in water. Meaning of certain expressions.

26.—(1) In this Act, unless the context otherwise requires— Interpretation.

The expression "Minister" means the Minister of Agriculture and Fisheries :

The expression "purchaser" includes any person other than a carrying agent acting on behalf of a purchaser :

The expression "inspector" includes an inspector appointed by the Minister or an inspector appointed by the council of a county or county borough :

The expression "Government Chemist" means the head of the department of the Government Chemist, and shall include any deputy government chemist appointed to act in the case of illness, incapacity, or absence of the Government Chemist, or pending the appointment of the Government Chemist, to act in his place :

The expression "cattle" means bulls, cows, oxen, heifers, calves, sheep, goats and swine.

(2) An article consigned to a purchaser shall not for the purposes of this Act be deemed to be delivered to him until it arrives at the place to which it is consigned whether the consignment is by direction of the seller or the purchaser.

(3) Where an article is delivered to a purchaser in two or more consignments, this Act shall apply to each consignment as though it were a separate article.

(4) Where the method of analysis for determining the amount of any substance contained in an article is prescribed under this Act, any statement in any statutory statement or document which by virtue of this Act takes effect as a warranty and any mark on an article or entry in a register under this Act stating or indicating the amount of such substance shall be taken to be a statement of the amount of the substance as determined by analysis in accordance with the method so prescribed.

(5) Particulars as to the nature, substance, or quality of an article marked or indicated by a mark or entered in a register shall not for the purposes of this Act be deemed to be false to the prejudice of the purchaser if the mis-statement as respects any ingredient does not exceed the limits of variation (if any) prescribed under this Act in relation thereto.

Application
to City and
Port of
London.

27. This Act shall apply to the Port of London and the City of London subject to the following modifications:—

(a) The sanitary authority of the Port of London as regards the district of that authority, and the Common Council of the City of London as regards the City of London, shall, to the exclusion of any other council, perform and exercise the duties and powers by this Act imposed and conferred on councils of counties and county boroughs:

(b) The expenses of the Port of London sanitary authority and the Common Council incurred in

the execution of this Act (including any expenditure incurred in the purchase of articles for the purpose of enforcing the provisions of this Act) shall be defrayed out of the general rate of the City of London.

28.—(1) This Act shall apply to Scotland subject to the following modifications :— Application to Scotland.

- (a) References to the Minister shall, except in the provisions of this Act relating to joint action by the Minister and the Board of Agriculture for Scotland, be construed as references to the Board of Agriculture for Scotland :
- (b) The powers and duties of councils of counties and county boroughs under this Act shall be exerciseable and performed by the local authorities under the Diseases of Animals Act, 1894, and the expenses incurred under this Act by such local authorities shall be defrayed out of a rate to be levied, ascertained, fixed, and paid in like manner as the local rate under that Act : 57 & 58 Vict.
c. 57.
- (c) Such local authorities as aforesaid shall have the like power to appoint a joint committee for any purpose of this Act as is conferred by section seventy-six of the Local Government (Scotland) Act, 1889, on county and town councils for any purpose of that Act, and the provisions of the said section shall apply accordingly, and a reference to the Local Government Act, 1888, shall be construed as a reference to the provisions of the said Act of 1889 as so applied : 52 & 53 Vict.
c. 50.
51 & 52 Vict.
c. 41.
- (d) Subsections (1) and (4) of section twenty and subsection (3) of section twenty-one shall not apply.

Provided that—

- (i) no proceedings shall be brought in respect of causing or permitting any name, mark or particulars (except particulars which are not required to be contained in a statutory statement) to be false or in respect of failure to include in the particulars marked or indicated

by a mark or entered in a register or written on a label any particulars which are required by this Act to be contained in the statutory statement or in respect of the presence in a feeding stuff of any deleterious ingredient until the part of the sample retained by the agricultural analyst has been analysed and a certificate of analysis given by the Government Chemist; and

- (ii) in any prosecution to which subsection (3) of section twenty of this Act applies there shall be served with the complaint a copy of any certificate of the agricultural analyst obtained on behalf of the prosecution.

Application
to North-
ern Ireland.

29.—(1) This Act shall apply to Northern Ireland subject to the following modifications:—

- (a) The regulations made by the Minister and the Board of Agriculture for Scotland shall apply to Great Britain only:
- (b) References to the Minister, and to the Minister and the Board of Agriculture for Scotland acting jointly shall be construed as references to the Ministry of Agriculture for Northern Ireland: Provided that the Ministry of Agriculture for Northern Ireland in lieu of appointing a separate advisory committee may, in making regulations to be laid before the Parliament of Northern Ireland, act on the advice of the advisory committee appointed for Great Britain:
- (c) References to the Treasury shall be construed as references to the Ministry of Finance for Northern Ireland:
- (d) References to the Government Chemist shall be construed as references to the Chief Agricultural Analyst for Northern Ireland:
- (e) The reference to the Local Government Act, 1888, shall be construed as a reference to article thirty-eight of the schedule to the Local Government (Application of Enactments) Order, 1898:

(f) The expenses of a council incurred in the execution of this Act shall be defrayed, in the case of a county council, out of the county fund as a county at large charge, and, in the case of a county borough council, out of any rate or fund applicable to the purposes of the Public Health (Ireland) Acts, 1878 to 1918 :

(g) References to Parliament and to His Majesty shall be construed respectively as references to the Parliament and to the Governor of Northern Ireland, and the reference to twenty-one days, occurring in relation to regulations laid before Parliament, shall be construed as a reference to the period prescribed by subsection (1) of section 4 of the Rules Publication Act (Northern Ireland), 1925.

(2) For the purpose of section six of the Government of Ireland Act, 1920, this Act, in its application to Northern Ireland, shall be treated as if it had been an Act passed before the appointed day for the commencement of that section. 10 & 11
Geo. 5. c. 67.

30.—(1) This Act may be cited as the Fertilisers and Feeding Stuffs Act, 1926. Short title,
commence-
ment,
repeal and
extent.

(2) This Act shall come into operation on such day not earlier than the first day of July nineteen hundred and twenty-seven as may be appointed for the purpose by the Minister and the Board of Agriculture for Scotland jointly.

(3) The Fertilisers and Feeding Stuffs Act, 1906, is hereby repealed : 6 Edw. 7.
c. 27.

Provided that nothing in this repeal shall affect any appointment made under that Act, but any such appointment shall have effect as if made under this Act.

SCHEDULES.

Sections 1, 2,
3, 4, 5, 8, 10,
12.

FIRST SCHEDULE.

ARTICLES TO WHICH ALL THE PROVISIONS OF THE ACT
ARE APPLICABLE.

PART I.

FERTILISERS.

Article.	Particulars to be contained in Statutory Statement.
Basic slag - - -	Amount of phosphoric acid. Amount of the article that will pass through a prescribed sieve.
Basic superphosphate - -	Amount of phosphoric acid.
Bone meal, or other product (excluding dissolved or vitriol- ised bone) obtained by grinding or otherwise treating bone, used for fertilising purposes.	Amounts of nitrogen and phos- phoric acid respectively.
Calcium cyanamide - - -	Amount of nitrogen. Amount of dicyandiamide if in excess of 2 per cent.
Compound fertilisers, that is to say, mixtures of any article or of two or more articles mentioned in this Part of this Schedule or in Part I. of the Second Schedule with any other such article or articles or with any other substance.	Amounts of nitrogen, potash, soluble phosphoric acid and insoluble phosphoric acid respectively.
Dissolved or vitriolised bone -	Amounts of nitrogen, soluble phosphoric acid and insoluble phosphoric acid respectively.
Fish residues or other product obtained by drying and grinding or otherwise treating fish or fish waste, used for fertilising purposes.	Amounts of nitrogen and phos- phoric acid respectively.

Article.	Particulars to be contained in Statutory Statement.	1ST SCH. —cont.
Guano, including Peruvian and other raw guanos.	Amounts of nitrogen, phosphoric acid and potash respectively.	
Hoofs - - - - -	Amount of nitrogen.	
Hoofs and horns - - -	Amount of nitrogen.	
Horns - - - - -	Amount of nitrogen.	
Meat and bone residues, or any product not specifically mentioned elsewhere in this Part of this Schedule obtained by drying and grinding or otherwise treating, bone, flesh, flesh fibre (including whale meat) and other slaughterhouse residues, used for fertilising purposes.	Amounts of nitrogen and phosphoric acid respectively.	
Nitrate of lime - - -	Amount of nitrogen.	
Nitrate of soda - - -	Amount of nitrogen.	
Oil seed fertilisers, including castor meal, mowrah meal, rape meal, or any residue which is obtained by the removal of oil from seeds.	Amount of nitrogen.	
Potassium salts used as fertilisers, including kainit, extra kainit, sylvinite, potash manure salt, muriate of potash, sulphate of potash and sulphate of potash-magnesia.	Amount of potash.	
Raw phosphate or phosphate rock, ground or unground.	Amount of phosphoric acid. Amount that will pass through a prescribed sieve.	
Sulphate of ammonia - -	Amount of nitrogen and amount of free acid.	
Sulphate of ammonia (neutral)	Amount of nitrogen.	
Superphosphate - - -	Amount of soluble phosphoric acid.	

The provisions of this Part of this Schedule shall apply to any article described therein under whatever name it may be sold or offered for sale and notwithstanding that it contains a substance not mentioned in this Part of this Schedule.

Amounts are to be stated as percentages of the weight of the article.

Nitrogen is to be stated in terms of nitrogen.

1ST SCH.
—cont.

Phosphoric acid, soluble phosphoric acid and insoluble phosphoric acid are to be stated in terms of phosphoric anhydride (P_2O_5).

Potash is to be stated in terms of potassium oxide (K_2O).

Free acid is to be stated in terms of sulphuric acid (H_2SO_4).

PART II.

FEEDING STUFFS.

Article.	Particulars to be contained in Statutory Statement.
Barley meal - - - -	None.
Bean meal - - - -	None.
Cocoonut or copra cake or meal	Amounts of oil and albuminoids (protein) respectively.
Compound cakes or meals, that is to say, any cakes or meals (other than molasses feeds) consisting of a mixture of any article or of two or more articles mentioned in this Part of this schedule or in Part II. of the Second Schedule with any other such article or articles or with any other substance, or any cakes or meals produced by grinding, crushing, or otherwise treating together, or by mixing together after being separately crushed, ground or otherwise separately treated, any two or more raw materials out of which such articles are produced, or any one or more of such materials with any other substance or substances.	Amounts of oil, albuminoids (protein) and fibre respectively.
Cotton cakes or meals, not decorticated.	Amounts of oil and albuminoids (protein) respectively.
Cotton cakes or meals from decorticated or partly decorticated cotton seed.	Amounts of oil, albuminoids (protein) and fibre respectively.
Dari or durra meal - - -	None.
Dried sugar beet residue - -	Amounts of sugar and fibre respectively.
Feeding bone flour, or any other bone product for feeding purposes.	Amounts of phosphoric acid and albuminoids (protein) respectively.

Article.	Particulars to be contained in Statutory Statement.	1ST SCH. —cont.
Feeding meat and bone meal, or any other product of meat (including whale meat) and bone for feeding purposes.	Amounts of oil albuminoids (protein) and phosphoric acid respectively.	
Feeding meat meal, or any other product of meat (including whale meat) for feeding purposes.	Amounts of oil and albuminoids (protein) respectively.	
Fish meal, or other product obtained by drying and grinding or otherwise treating fish or fish waste.	Amounts of albuminoids (protein), phosphoric acid, oil and salt respectively.	
Ground oats - - - -	None.	
Linseed cakes and the meals of such cakes.	Amounts of oil and albuminoids (protein) respectively.	
Linseed meal - - - -	Amount of oil.	
Locust bean meal - - - -	None.	
Maize by-products not otherwise specifically mentioned in this schedule.	Amounts of oil, albuminoids (protein) and fibre respectively.	
Maize germ cake or meal -	Amounts of oil and albuminoids (protein) respectively.	
Maize gluten feed - - -	Amounts of oil and albuminoids (protein) respectively.	
Maize meal; Indian meal -	None.	
Molasses feeds, including any feeding stuffs, composed of treacle or molasses with an absorbent, containing not less than 10 per cent. of sugar.	Amounts of sugar and fibre respectively.	
Oil cakes or meals not otherwise specifically mentioned in this schedule which are the product of any one undecorticated substance or seed from which oil has been removed.	Amounts of oil and albuminoids (protein) respectively.	
Oil cakes or meals not otherwise specifically mentioned in this schedule which are the product of any one decorticated or partly decorticated substance or seed from which oil has been removed.	Amounts of oil, albuminoids (protein) and fibre respectively.	
Palm kernel cake or meal -	Amounts of oil and albuminoids (protein) respectively.	
Pea meal - - - -	None.	

1st Sch.
—*cont.*

Article.	Particulars to be contained in Statutory Statement.
Rape cake or meal - - -	Amounts of oil and albuminoids (protein) respectively.
Rice bran or rice meal, or the by-product produced in milling shelled rice.	Amounts of oil, albuminoids (protein) and fibre respec- tively.
Soya cake or meal - - -	Amounts of oil and albuminoids (protein) respectively.
Treacle or molasses - - -	Amount of sugar.
Wheat meal - - - -	None.
Wheat offals, or millers' offals -	Amount of fibre.

The provisions of this Part of this Schedule shall apply to any article described therein under whatever name it may be sold or offered for sale and notwithstanding that it contains a substance not mentioned in this Part of this Schedule.

Amounts are to be stated as percentages of the weight of the article.

Phosphoric acid is to be stated in terms of phosphoric anhydride (P_2O_5).

Amount of albuminoids (protein) means the amount of nitrogen, other than ammoniacal or nitric nitrogen, if present, multiplied by 6.25.

Wherever albuminoids are stated in accordance with the provisions of this Part of this Schedule the word "albuminoids" is to be followed by the expression "(protein)".

Sections 1, 2,
3, 12.

SECOND SCHEDULE.

ARTICLES TO WHICH SOME ONLY OF THE PROVISIONS OF
THE ACT ARE APPLICABLE.

PART I.

FERTILISERS.

Article.	Particulars to be contained in Statutory Statement.
Calcium hydrate; slaked lime -	Amount of calcium hydrate and equivalent of calcium oxide.
Chalk, ground - - -	Amount of calcium carbonate and equivalent of calcium oxide.

Article.	Particulars to be contained in Statutory Statement.	2ND SCH. —cont.
Dried blood for fertilising purposes.	Amount of nitrogen.	
Limestone, ground - - -	Amount of calcium carbonate and equivalent of calcium oxide. Amount that will pass through a prescribed sieve.	
Precipitated bone - - -	Amount of phosphoric acid.	
Quick lime,* ground or otherwise.	Amount of calcium oxide.	
Shoddy - - - - -	None.	

The provisions of this Part of this Schedule shall apply to any article described therein under whatever name it may be sold or offered for sale, and notwithstanding that it contains a substance not mentioned in this Part of this Schedule.

Amounts are to be stated as percentages of the weight of the article.

Nitrogen is to be stated in terms of nitrogen.

Phosphoric acid is to be stated in terms of phosphoric anhydride (P_2O_5).

Calcium carbonate is to be stated in terms of calcium carbonate ($CaCO_3$).

Calcium hydrate is to be stated in terms of calcium hydrate ($Ca(HO)_2$).

Calcium oxide is to be stated in terms of calcium oxide (CaO).

PART II.

FEEDING STUFFS.

Article.	Particulars to be contained in Statutory Statement.
Clover meal - - - -	Amount of fibre.
Dried brewery and distillery grains.	Amounts of oil and albuminoids (protein) respectively.
Dried yeast - - - -	Amount of albuminoids (protein).
Feeding dried blood - -	Amount of albuminoids (protein).
Malt culms - - - -	Amounts of albuminoids (protein) and fibre respectively.

2ND SCH.
—cont.

The provisions of this Part of this Schedule shall apply to any article described therein under whatever name it may be sold or offered for sale and notwithstanding that it contains a substance not mentioned in this Part of this Schedule.

Amounts are to be stated as percentages of the weight of the article.

Amount of albuminoids (protein) means the amount of nitrogen, other than ammoniacal or nitric nitrogen, if present, multiplied by 6.25.

Wherever albuminoids are stated in accordance with the provisions of this Part of this Schedule the word "albuminoids" is to be followed by the expression "(protein)".

Sections 1, 2,
20.

THIRD SCHEDULE.

INGREDIENTS IN FEEDING STUFFS THE PRESENCE OF WHICH MUST BE DECLARED.

(a) Husks, chaff, glumes, shudes, hulls, nutshells or skins of nuts, from any source, when used as separate ingredients or artificial mixtures in the manufacture of feeding stuffs.

Where the kernels naturally associated in seeds with one or other of the above materials are present in a feeding stuff along with the materials with which they are so associated, regard shall be had to the proportion of the above materials that might reasonably be expected to accompany such kernels when the seed from which they are derived is in its natural condition, provided that feeding in this condition is regarded as a common practice in the feeding of livestock.

(b) Wheat or rye straw, ground or otherwise.

(c) Peat or peat moss, treated or untreated.

(d) Sawdust or any other form of wood, treated or untreated.

FOURTH SCHEDULE.

Section 2.

DEFINITIONS IMPLIED ON THE SALE OF ARTICLES UNDER
CERTAIN NAMES.

PART I.

FERTILISERS.

Name under which Article sold.	Implied Definition.
Basic slag - - -	A by-product, containing phosphorus, obtained in the manufacture of steel and to which no addition has been made at the time of leaving or after it has left the furnace.
Basic superphosphate -	A non-acid phosphate produced by mixing lime with superphosphate of lime and to which no other matter has been added.
Bone meal - - -	Commercially pure bone, raw or degreased, which has been ground or crushed.
Calcium cyanamide -	Commercial calcium cyanamide.
Calcium hydrate; slaked lime.	Commercial hydrate of lime.
Castor meal - - -	The residue which is obtained by the removal of oil from commercially pure castor seed.
Chalk, ground - - -	The product obtained by grinding cretaceous limestone, to which no other matter has been added.
Compound fertilisers -	Mixtures of any article or of two or more articles mentioned in Part I. of the First Schedule or in Part I. of the Second Schedule with any other such article or articles or with any other substance.
Dissolved or vitriolised bone.	Commercially pure bone which has been treated with sulphuric acid.
Dried blood manure -	Blood which has been dried, to which no other matter has been added.
Fish guano; fish manure	A product obtained by drying and grinding or otherwise treating fish or fish waste, to which no other matter has been added.



4TH SCH.
—cont.

Name under which Article sold.	Implied Definition.
Hoofs - - -	The product obtained by crushing or grinding hoof, to which no other matter has been added.
Hoofs and horns -	A mixture of hoof and horn, crushed or ground, to which no other matter has been added.
Horns - - -	The product obtained by crushing or grinding horn, to which no other matter has been added.
Limestone, ground	The product obtained by grinding sedimentary rock consisting largely of carbonate of lime, to which no other matter has been added.
Meat and bone manure; meat meal; carcase meal.	The product of drying and grinding or otherwise treating bone, flesh, flesh fibre (including whale meat) and other slaughter-house residues, to which no other matter has been added.
Mowrah meal - -	The residue which is obtained by the removal of oil from commercially pure mowrah seed.
Muriate of potash -	Potassium chloride for fertilising purposes.
Nitrate of lime -	Calcium nitrate for fertilising purposes.
Nitrate of soda -	Sodium nitrate for fertilising purposes.
Precipitated bone -	An insoluble calcium phosphate prepared by treating commercially pure bone with acid, and precipitation of phosphate from the solution.
Quicklime, ground or otherwise.	Commercial calcium oxide.
Rape meal - - -	The residue which is obtained by the removal of oil from commercially pure rape seed.
Raw guano - - -	The excrement and remains of birds, containing both nitrogen and phosphorus, prepared for use by screening where necessary, but to which no addition has been made.
Raw phosphate or phos- phate rock, ground or otherwise.	The substance obtained from mineral calcium phosphate deposits, to which no other matter has been added.

Name under which Article sold.	Implied Definition.
Shoddy manure; wool waste; wool combings; wool manure; flock dust.	Waste of wool, or of wool mixed with fibrous materials such as are associated with wool in the textile industries, to which no other matter has been added.
Steamed bone flour; steamed bone meal.	Commercially pure bone from which nitrogen has been removed by steam.
Sulphate of ammonia -	Ammonium sulphate for fertilising purposes.
Sulphate of ammonia (neutral).	Ammonium sulphate for fertilising purposes, containing not more than 0·025 per cent. of free acid in terms of sulphuric acid.
Sulphate of potash -	Potassium sulphate for fertilising purposes.
Superphosphate -	A mineral substance containing soluble phosphate of lime.

PART II.

FEEDING STUFFS.

Barley meal -	-	-	The meal obtained by grinding commercially pure barley, as grown.
Bean meal -	-	-	The meal obtained by grinding commercially pure beans of the species <i>fabia vulgaris</i> or <i>phaseolus vulgaris</i> , as grown.
Clover meal -	-	-	Whole clover, as grown, dried and ground, to which no other matter has been added.
Compound cakes or meals			Cakes or meals (other than molasses feeds) consisting of a mixture of any article or of two or more articles mentioned in Part II of the First Schedule or in Part II of the Second Schedule with any other such article or articles or with any other substance, or any cakes or meals produced by grinding, crushing or otherwise treating together, or by mixing together after being separately crushed, ground or otherwise separately treated, any two or more raw materials out of which such articles are produced or any one or more of such materials with any other substance or substances.

4TH SCH.
—cont.

Name under which Article sold.	Implied Definition.
Cotton cakes or meals not decorticated.	The residue resulting from the removal of oil from commercially pure cotton seed, not decorticated.
Cotton cakes or meals from decorticated or partly decorticated cotton seed.	The residue resulting from the removal of oil from commercially pure cotton seed from which the cortex, in whole or in part, has been removed.
Dari meal; durra meal -	The meal obtained by grinding com- mercially pure dari or durra seed.
Dried brewery grains -	The article produced by drying the residue of malted and unmalted cereals used in brewing, to which no other matter has been added.
Dried distillery grains -	The article produced by drying the residues from distillery mash-tuns, to which no other matter has been added.
Dried sugar beet residue	The article produced by drying the sugar beet residue produced in the manufacture of sugar from sugar beet.
Dried yeast - - -	An article produced by drying yeast or yeast residues, to which no other matter has been added.
Feeding bone flour -	The product obtained by grinding commercially pure steamed bone.
Feeding dried blood -	Blood which has been dried, to which no other matter has been added.
Feeding meat and bone meal.	The product (containing not more than 4 per cent. of salt) of grinding bone, flesh and flesh fibre (including whale meat), to which no other matter has been added. -
Feeding meat meal -	The product (containing not more than 4 per cent. of salt) of drying and grinding flesh and flesh fibre (includ- ing whale meat), to which no other matter has been added.
Fish meal; fish residue meal.	A product obtained by drying and grinding or otherwise treating waste of fish, to which no other matter has been added.
Ground bone - -	The meal obtained by grinding com- mercially pure bone.

Name under which Article sold.	Implied Definition.	4TH SCH. —cont.
Ground oats - -	The meal obtained by grinding commercially pure oats, as grown.	
Linseed cakes or the meals of such cakes.	The residue resulting from the removal of oil from commercially pure linseed.	
Linseed meal - -	The meal obtained by grinding or crushing commercially pure linseed.	
Locust bean meal -	The meal obtained by grinding or crushing commercially pure locust beans.	
Maize germ cake or meal	The residue resulting from the removal of oil from maize germs, to which no other matter has been added.	
Maize gluten feed -	A by-product resulting from the removal of starch and germ from maize, to which no other matter has been added.	
Maize meal; Indian meal	The meal obtained by grinding commercially pure maize or Indian corn, as grown.	
Malt culms - - -	The rootlets and shoots arising from the screening of malt, to which no other matter has been added.	
Molasses feeds - -	Any mixture, containing not less than 10 per cent. of sugar, of an absorbent material and treacle or molasses.	
Nut cakes or meals, including cocoanut, copra, palm kernel and ground nut cakes and meals.	The residue resulting from the removal of oil from commercially pure nut kernels.	
Pea meal - - -	The meal obtained by grinding commercially pure peas, as grown.	
Rape cake or meal -	The residue resulting from the removal of oil from commercially pure rape seed.	
Rice bran; rice meal -	The by-product produced in milling shelled rice, to which no other matter has been added.	
Soya cake or meal -	The residue resulting from the removal of oil from commercially pure soya beans.	
Sugar beet treacle; sugar beet molasses.	A concentrated syrup product obtained in the manufacture of sugar from sugar beet, to which no other matter has been added.	

4TH SCH.
—cont.Name under which
Article sold.

Implied Definition.

Sugar cane treacle ; sugar cane molasses.	A concentrated syrup product obtained in the manufacture of sugar from sugar cane, to which no other matter has been added.
Wheat meal - - -	The meal obtained by grinding com- mercially pure wheat, as grown.
Wheat offals ; millers' offals.	A product of wheat separated in the process of milling and containing not more than 4 per cent. of vegetable substances, other than wheat, ex- tracted from wheat in the process of cleaning by the maker of the offals in the production of flour.
White fish meal - -	A product (containing not more than 6 per cent. of oil and not more than 4 per cent. of salt) obtained by drying and grinding or otherwise treating waste of white fish, and to which no other matter has been added.

In the case of every article mentioned in this Schedule the definition of which includes the expression "commercially pure" it is implied that no other matter may be added.

Section 7.

FIFTH SCHEDULE.

DELETERIOUS INGREDIENTS IN FEEDING STUFFS.

(a) Salts soluble in water, if present in a feeding stuff in proportion likely to be injurious to the health of animals.

(b) All poisonous substances except those naturally present in the material or materials from which the feeding stuff is derived.

(c) Sand, silicious matter or other insoluble mineral matter not naturally associated with ingredients of the feeding stuff which do not fall within the scope of this Schedule, or which, even if naturally so associated, are present in greater proportion than the maximum that may be expected to be due to such natural association.

For the purposes of this paragraph the term "insoluble" shall imply insolubility in hydrochloric acid, as determined by a prescribed method; the term "natural association" shall be construed as applying to average commercial samples of the feeding material with which it may be claimed that a particular mineral ingredient is associated.

5TH SCH.
—cont.

CHAPTER 46.

An Act to make further provision with respect to
the University of London.

[15th December 1926.]

WHEREAS a Departmental Committee appointed by a Minute of the Board of Education dated the eighth day of October, nineteen hundred and twenty-four, to consider the Final Report of the Royal Commission on University Education in London dated the twenty-seventh day of March, nineteen hundred and thirteen, and, having regard to the present circumstances and after consultation with the persons and bodies concerned, to indicate what are the principal changes now most needed in the existing constitution of the University of London and on what basis a Statutory Commission should be set up to frame new statutes for the University, has in its Report (in this Act referred to as "the Report of the Committee") made recommendations with respect to the matters aforesaid and in particular has recommended that Statutory Commissioners should be appointed to make new statutes for the University in accordance with the recommendations in the said Report:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) There shall be a body of Commissioners to be styled "The University of London Commissioners," Appoint-
ment of